

HOUSE BILL No. 1422

DIGEST OF INTRODUCED BILL

Citations Affected: IC 4-13-21; IC 5-35.7.

Synopsis: Immigration matters. Requires certain state agencies to give hiring preference to an individual who is a citizen or national of the United States over another individual who is an alien if the two individuals are equally qualified. Provides that the state agencies may not sponsor an individual for a new H-1B visa after July 1, 2026, unless certain information is submitted to the attorney general and the attorney general approves the state agency sponsoring the individual. Requires the state agencies to prepare and submit a report that includes certain information regarding each employee the state agency sponsored for a new H-1B visa during the immediately preceding state fiscal year. Requires the attorney general to post the reports on its website. Prohibits the state or a political subdivision from directly or indirectly funding services related to an immigration proceeding to an individual with unlawful status or to an entity that is a party to a legal action for the purpose of challenging, obstructing, or delaying the enforcement of certain federal immigration laws. Provides a private right of action for a violation of this prohibition.

Effective: July 1, 2026.

Payne, Ireland

January 8, 2026, read first time and referred to Committee on Government and Regulatory Reform.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1422

A BILL FOR AN ACT to amend the Indiana Code concerning state and local administration.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 4-13-21 IS ADDED TO THE INDIANA CODE AS
2 A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]:

4 **Chapter 21. Employment Practices of State Agencies and**
5 **Reporting**

6 **Sec. 1. Except as provided in section 2 of this chapter, the**
7 **definitions in 8 U.S.C. 1101 apply throughout this chapter.**

8 **Sec. 2. As used in this chapter, "attorney general" means the**
9 **office of the attorney general created by IC 4-6-1-2.**

10 **Sec. 3. As used in this chapter, "state agency" means:**

11 (1) **an authority, a board, a branch, a commission, a**
12 **committee, a department, a division, or another**
13 **instrumentality of the executive, including the administrative,**
14 **department of state government; or**

15 (2) **a state educational institution (as defined in**
16 **IC 21-7-13-32).**

17 **Sec. 4. A state agency shall give hiring preference to an**



individual who is a citizen or national of the United States over another individual who is an alien if the two (2) individuals are equally qualified.

Sec. 5. A state agency may not sponsor an individual for a new H-1B visa after July 1, 2026, unless the following conditions are met:

(1) The state agency submits information to the attorney general, in a manner and form determined by the attorney general, that demonstrates the following:

(A) The state agency will not pay the potential H-1B visa employee less than the required wage rate under 20 CFR 655.731.

(B) The working conditions of the potential H-1B visa employee will not adversely affect the working conditions of employees similarly employed in the area of intended employment, as required under 20 CFR 655.732.

(2) The attorney general approves the state agency sponsoring the individual for a new H-1B visa based on the information provided under subdivision (1).

Sec. 6. Not later than July 1, 2027, and not later than July 1 of each year thereafter, each state agency shall do the following:

(1) Prepare a report that includes the following information regarding each employee the state agency sponsored for a new H-1B visa during the immediately preceding state fiscal year:

(A) The employee's employment title and salary.

(B) A description of the employee's employment position, including the qualifications required for the employment position.

(C) The total number of citizens and nationals of the United States who applied for the employment position described in clause (B).

(2) Submit the report prepared under subdivision (1) to the attorney general.

Sec. 7. The attorney general shall post reports received under section 6 of this chapter on the attorney general's website.

SECTION 2. IC 5-35.7-1-4.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 4.5.** As used in this article, "individual with unlawful status" means an individual who is not a:

(1) citizen or national of the United States; or

(2) qualified alien (as defined in 8 U.S.C. 1641).



1 SECTION 3. IC 5-35.7-4-4 IS ADDED TO THE INDIANA CODE
2 AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 4. (a) Except as provided in subsection (c), neither the**
4 **state nor a political subdivision (as defined in IC 36-1-2-13) may**
5 **directly fund services or provide a grant or other funding to an**
6 **entity that:**

7 **(1) provides services to or on behalf of an individual with**
8 **unlawful status in connection with an immigration**
9 **proceeding; or**

10 **(2) is a party to a civil action, administrative proceeding, or**
11 **other legal process for the purpose of challenging,**
12 **obstructing, or delaying the enforcement of federal**
13 **immigration laws with respect to an individual with unlawful**
14 **status.**

15 **(b) The following may bring an action for injunctive relief based**
16 **on a violation of subsection (a):**

17 **(1) The attorney general.**

18 **(2) An individual.**

19 **An individual who prevails in an action under this subsection is**
20 **entitled to reasonable attorney's fees and court costs.**

21 **(c) This section does not apply to expenses incurred in**
22 **connection with a criminal or juvenile delinquency proceeding,**
23 **including public defender services.**

